



IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

212

CRWP-5988-2026 (O&M)
DECIDED ON: 05.06.2026

BANTI

....PETITIONER

VERSUS

STATE OF PUNJAB & ORS.

....RESPONDENTS

CORAM: HON'BLE MR. JUSTICE SURYA PARTAP SINGH

Present: Mr. Raghav Chadha, Advocate for the petitioner.

Mr. Jasdev Singh Thind, DAG Punjab.

SURYA PARTAP SINGH, J (ORAL)

Short reply has been filed by the learned State Counsel. The same be taken on record.

2. The instant petition has been filed by the petitioner for directions to the respondents No.2 and 3 to protect her life and liberty from the respondent No.4.

3. It has been contended by learned State Counsel that the petitioner is wanted, as an accused, in the case pertaining to FIR No.40 dated 01.06.2026, under Sections 115(2), 117(2), 191(3), 190 of Bharatiya Nyaya Sanhita, 2023, Police Station Talwara, District Hoshiarpur.

4. In view of above, once the petitioner is wanted as an accused in a criminal case, this petition seeking for protection of life and liberty from



the respondent No.4 is not the proper remedy for the petitioner. Rather the remedy is to approach the appropriate forum for anticipatory bail.

5. Thus, it is hereby observed that the present petition is not maintainable and deserves dismissal. The same is hereby dismissed, accordingly.

6. Pending miscellaneous application(s), if any, shall stand disposed of.

05.06.2026

Gaurav Thakur

(SURYA PARTAP SINGH)
JUDGE

Whether speaking/reasoned	:Yes/No
Whether reportable	: Yes/No